

However, the Pedder Defendants are incorrect as to the arbitration costs. The HAA expressly states “that in most all [sic] circumstances [Pedder Auto Management] will pay all costs and arbitrator fees unique to the arbitration as required for controlling case law, such as for statutory claims for unpaid wages, discrimination, harassment, retaliation, etc.” (Dec.Jempsa Ex. “6”, ¶ 9, p. 80 [p. 27 of 28.]) The Pedder Defendants also assert that Smith waived the right to bring a class, collective, representative or PAGA claim *unless prohibited by controlling law*. (*Id.* ¶ 10.) Noting that the HAA is governed by the FAA, the Pedder Defendants persuasively argue that to the extent that the PAGA waiver is prohibited, the HAA provides for severance as opposed to voiding the entire HAA. (*Ibid.*; see *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 662 [finding that the employer was entitled to compel arbitration of former employee’s individual claim].) Any substantive unconscionability is exceedingly minimal as it is limited to the PAGA waiver, which could be severed *if it existed*.

Importantly, some procedural and substantive element is required for the court to find unconscionability. Since there are no procedural nor substantive elements, unconscionability cannot be established.

Accordingly, the motion to compel arbitration between Plaintiff, Smith, as an individual³ and Defendant, Pedder Auto Management, is GRANTED.

3.

CASE #	CASE NAME	HEARING NAME
CVME2606867	CAREY VS CALIFORNIA HIGHWAY PATROL	MOTION FOR PRESERVATION ORDER AND PRODUCTION OF RESPONSIVE RECORDS

Tentative Ruling: DENIED ON BOTH SUBSTANTIVE AND PROCEDURAL GROUNDS.

Motion is unsupported by proper memorandum of points and authorities. Moreover, it is overbroad, ambiguous, uncertain and unclear as to the relief moving party seeks.

4.

CASE #	CASE NAME	HEARING NAME
CVSW2309545	CARTY VS ALLISON JAMES OF CALIFORNIA, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: GRANT the motion for summary judgment.

GRANT GOLV’s requests for judicial notice of Exhibits 1 and 21 through 24.

DECLINE to consider the separate statement filed with GOLV’s reply.

DECLINE to consider Plaintiffs’ and GOLV’s evidentiary objections in full, as they are not material to the disposition of this motion. (C.C.P. § 437c(q).)

³ Plaintiffs take issue with the fact that Smith Consulting is not a party to any of the arbitration agreements. To the contrary, the Pedder Defendants persuasively argue this is irrelevant since Smith Consulting does not assert any claims against the Pedder Defendants.